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SYLVIA GOLDSCHMIDT †*
DONNA M. GENOVESE †
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By Appointment:
New York City:
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(845) 398-8930

† FELLOW, AMERICAN ACADEMY OF MATRIMONIAL LAWYERS
* FELLOW, INTERNATIONAL ACADEMY OF MATRIMONIAL LAWYERS

November 8, 2021

VIA MAIL & EMAILmd@difabiolawpc.com
Max Di Fabio, Esq.
Di Fabio & Associates, P.C.
2500 Westchester Avenue, Suite 107
Purchase, New York 10577

VIA MAIL & EMAIL cweddle@ktmlawfirm.com
Christopher S. Weddle Esq
Timko & Moses, LLP
1 North Broadway, Suite 412
White Plains, New York 10601-2327

VIA MAIL & EMAIL [redacted]
Stephen G. Russell
[redacted]
San Francisco, California 94109

Re: Matter Name: Tara Katelyn Walsh v. Stephen Grant Russell
File No. 154703, Docket No. V-07641-18/21Z; V-05280-21/21A
O-12635-19/21K
Matter Name: Linda Russell vs. Tara Katelyn Walsh
File No. 154703; Docket No. V-7641-18/21AA

Dear Sirs::

Enclosed please find for service upon you proposed Order on Default and Order on Consent noticed for settlement on November 18, 2021.

Very truly yours,

Donna M. Genovese

DMG:es
Enclosures

Public copy: the child's legal name is shown as E.V.; the child's date of birth, a private street address and a personal phone number and email address are removed. Otherwise unchanged.

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

----------X

TARA KATELYN WALSH,

Petitioner,

-against-

STEPHEN GRANT RUSSELL,

Respondent.

----------X

ORDER WITH NOTICE OF SETTLEMENT

File No. 154703
Docket Nos. V-07641-18/21Z; V-05280-21/21A; O-12635-19/21K

Hon. Michelle I. Schauer

PLEASE TAKE NOTICE, that an Order of which the within is a true copy will be presented for settlement to the Hon. Michelle I. Schauer, J.F.C. Justice of the within named Court, at Westchester County Family Court, 131 Warburton Avenue, Yonkers, New York 10701 on November 18, 2021, at 9:30 A.M.

Dated: November 8, 2021
White Plains, New York

Yours, etc.,
GOLDSCHMIDT & GENOVESE, LLP

BY: _____
Donna M. Genovese, Esq.
Court Appointed Attorney for Child
81 Main Street, Suite 405
White Plains, New York 10601
Telephone (914) 681-6006
Email: sgdmg@goldgenmatlaw.com

To: Christopher S. Weddle Esq
Timko & Moses, LLP
Attorney for Petitioner
Tara Katelyn Walsh
1 North Broadway, Suite 412
White Plains, New York 10601-2327
Telephone: 914 993-0600
Email: **cweddle@ktmlawfirm.com**

Max Di Fabio, Esq.
Di Fabio & Associates, P.C.
Attorney for Paternal Grandmother
Linda Russell
2500 Westchester Avenue, Suite 107
Purchase, New York 10577
Telephone: 914 449-00000
Email: **md@difabiolawpc.com**

Stephen G. Russell
Respondent Pro Se
[redacted]
San Francisco, California 94109
Telephone [redacted]
Email: [redacted]

At the Family Court of the State of New York, held in and for the County of Westchester, at the Courthouse located at 131 Warburton Avenue, Yonkers, New York 10701, on the _____ day of November, 2021.

P R E S E N T:

MICHELLE I. SCHAUER, F.C.J.

----------X

TARA KATELYN WALSH,

Petitioner,

-against-

STEPHEN GRANT RUSSELL,

Respondent.

----------X

ORDER ON DEFAULT

File No. 154703

Docket Nos. V-07641-18/21Z; V-05280-21/21A; O-12635-19/21K

Hon. Michelle I. Schauer

WHEREAS, the Petitioner, Tara Katelyn Walsh, and Respondent, Stephen Grant Russell, are the parents of [redacted] E.V., date of birth [redacted] ("Child"); and

WHEREAS, the court-appointed Attorney for the Child, Donna M. Genovese, Esq., initiated an Order to Show Cause dated October 14, 2021 ("Order to Show Cause") requesting, *inter alia,* that: (i) Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf be restrained from posting, uploading blogs and displaying the likeness of [redacted] E.V. (i.e. photographs, animations, screen shots, drawings and the like) and disparaging [redacted] E.V.'s relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and (ii) Respondent and/or any persons, entities and/or agents acting on his behalf be restrained from recording any visits between [redacted] E.V. and Respondent and/or Linda Russell; and the Court having granted such interim relief; and

WHEREAS, Respondent, Stephen Grant Russell, *pro se,* counsel for Petitioner, Christopher S. Weddle, Esq., and counsel for Linda Russell, Max DiFabio, Esq. were served with the Order to Show Cause and the affidavits of service were filed with the Court on October 22, 2021; and

WHEREAS, the Order to Show Cause directed that opposition papers, if any, were due to be served on or before October 29, 2021 and that an in-person court appearance was required on November 5, 2021; and

WHEREAS, no opposition papers were filed with the Court regarding the Order to Show Cause; and

WHEREAS, the Attorney for the Child, Donna M. Genovese, Esq., of Goldschmidt & Genovese, LLP, Petitioner, Tara Katelyn Walsh, and Attorney for Petitioner, Christopher S. Weddle Esq. of Timko & Moses, LLP, Linda Russell and Attorney for Linda Russell, Max Di Fabio, Esq. of Di Fabio & Associates, P.C. having appeared before the Hon. Michelle I. Schauer on November 5, 2021 for the Order to Show Cause and Respondent, Stephen Grant Russell, *pro se,* not having appeared on such date; and

WHEREAS, the Court having heard the Order to Show Cause on November 5, 2021; it is hereby

ORDERED, that, on default, Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf is restrained from posting, uploading blogs and displaying the likeness of [redacted] (i.e. photographs, animations, screen shots, drawings and the like) regarding the above-captioned proceedings and proceedings under Docket No. V-7641-18/21AA initiated by Linda Russell and restrained from the disparagement of [redacted] relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and it is further

ORDERED, that, on default, Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf are restrained from recording any visits between E.V. [redacted] and Respondent and/or Linda Russell.

ENTER:

_____

MICHELLE I. SCHAUER, F.C.J.

Docket No. V-07641-18/21Z; V-05280-21/21A; O-12635-19/21K File *No.* 154703

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

TARA KATELYN WALSH,

Petitioner,

-against-

STEPHEN GRANT RUSSELL,

Respondent

ORDER OF DEFAULT WITH NOTICE OF SETTLEMENT

GOLDSCHMIDT & GENOVESE, LLP
Court Appointed Attorney for Child [redacted]
81 MAIN STREET, SUITE 405
WHITE PLAINS, NEW YORK 10601
(914) 681-6006
OFFICE FAX (914)681-8728

To:
Attorney(s) for

Service of a copy of the within *is hereby admitted,*
Dated: .....
Attorney(s) for

PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY *that the within is a (certified) true copy of a entered in the office of the clerk of the within named Court on* *20*

☐ NOTICE OF SETTLEMENT *that an Order of which the within is a true copy will be presented for settlement to the Hon. one of the judges of the within named Court, at on* *20* *, at* *M.*

Dated:

GOLDSCHMIDT & GENOVESE, LLP
Court Appointed Attorneys for Child, [redacted]
81 MAIN STREET, SUITE 405
WHITE PLAINS, NEW YORK 10601
(914) 681-6006
OFFICE FAX (914)681-8728

To:
Attorney(s) for

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

----------X

LINDA RUSSELL,

Petitioner,

-against-

TARA KATELYN WALSH,

Respondent.

----------X

ORDER WITH NOTICE OF SETTLEMENT
File No. 154703

Docket No. V-7641-18/21AA

Michelle I. Schauer, J.F.C.

PLEASE TAKE NOTICE, that an Order of which the within is a true copy will be presented for settlement to the Hon. Michelle I. Schauer, J.F.C. Justices of the within named Court, at Westchester County Family Court, 131 Warburton Avenue, Yonkers, New York 10701 on November 18, 2021, at 9:30 A.M.

Dated: November 8, 2021
White Plains, New York

Yours, etc.,
GOLDSCHMIDT & GENOVESE, LLP

BY: _____
Donna M. Genovese, Esq.
Court Appointed Attorney for Child
81 Main Street, Suite 405
White Plains, New York 10601
Telephone (914) 681-6006
Email: sgdmg@goldgenmatlaw.com

To: Christopher S. Weddle Esq
Timko & Moses, LLP
Attorney for Respondent
Tara Katelyn Walsh
1 North Broadway, Suite 412
White Plains, New York 10601-2327
Telephone: 914 993-0600
Email: **cweddle@ktmlawfirm.com**

Max Di Fabio, Esq.
Di Fabio & Associates, P.C.
Attorney for Petitioner
Linda Russell
2500 Westchester Avenue, Suite 107
Purchase, New York 10577
Telephone: 914 449-00000
Email: **md@difabiolawpc.com**

Stephen G. Russell
Pro Se
[redacted]
Telephone: [redacted]
San Francisco, California 94109
Email: [redacted]

At the Family Court of the State of New York, held in and for the County of Westchester, at the Courthouse located at 131 Warburton Avenue, Yonkers, New York 10701, on the _____ day of November, 2021.

P R E S E N T: **MICHELLE I. SCHAUER, F.C.J.**

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

----------X

LINDA RUSSELL,

Petitioner,

-against-

TARA KATELYN WALSH,

Respondent.

----------X

ORDER ON CONSENT

File No. 154703

Docket No. V-7641-18/21AA

Michelle I. Schauer, J.F.C.

WHEREAS, Tara Katelyn Walsh and Stephen Grant Russell are the parents of E.V., [redacted] date of birth [redacted] ("Child"); and

WHEREAS, Petitioner, Linda Russell, is the paternal grandmother of the Child; and

WHEREAS, the court-appointed Attorney for the Child, Donna M. Genovese, Esq., initiated an Order to Show Cause dated October 14, 2021 ("Order to Show Cause") requesting, *inter alia,* that: (i) Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf be restrained from posting, uploading blogs and displaying the likeness of E.V. [redacted] (i.e. photographs, animations, screen shots, drawings and the like) and disparaging E.V.'s [redacted] relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and (ii) Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf be restrained from recording any visits between E.V. [redacted] and Stephen Grant Russell and/or Petitioner, Linda Russell; and the Court having granted such interim relief; and

WHEREAS, Stephen Grant Russell, *pro se,* counsel for Tara Katelyn Walsh, Christopher S. Weddle, Esq., and counsel for Linda Russell, Max DiFabio, Esq. were served with the Order to Show Cause and the affidavits of service were filed with the Court on October 22, 2021; and

WHEREAS, the Order to Show Cause directed that opposition papers, if any, were due to be served on or before October 29, 2021 and that an in-person court appearance was required on November 5, 2021; and

WHEREAS, no opposition papers were filed with the Court regarding the Order to Show Cause; and

WHEREAS, the Attorney for the Child, Donna M. Genovese, Esq., of Goldschmidt & Genovese, LLP, Respondent, Tara Katelyn Walsh, and Attorney for Respondent, Christopher S. Weddle Esq. of Timko & Moses, LLP, Petitioner, Linda Russell and Attorney for Linda Russell, Max Di Fabio, Esq. of Di Fabio & Associates, P.C. having appeared before the Hon. Michelle I. Schauer on November 5, 2021 for the Order to Show Cause and Stephen Grant Russell, *pro se,* not having appeared on such date; and

WHEREAS, the Court having heard the Order to Show Cause on November 5, 2021; it is hereby

ORDERED, that, on consent, Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf is restrained from posting, uploading blogs and displaying the likeness of E.V. (i.e. photographs, animations, screen shots, drawings and the like) regarding the above-captioned proceedings and proceedings under Docket Nos. V-7641-18/21Z, V-05280-21/21A and O-12635-19/21K and restrained from the disparagement of E.V.'s relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and it is further

ORDERED, that, on consent, Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf are restrained from recording any visits between [redacted] E.V. and Stephen Grant Russell and/or Petitioner, Linda Russell.

ENTER:

MICHELLE I. SCHAUER, F.C.J.

Docket No. V-7641-18/21AA *File No.* 154703

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

LINDA RUSSELL

Petitioner,

-against-

TARA KATELYN WALSH,

Respondent

ORDER ON CONSENT WITH NOTICE OF SETTLEMENT

GOLDSCHMIDT & GENOVESE, LLP
Court Appointed Attorney for Child [redacted]
81 MAIN STREET, SUITE 405
WHITE PLAINS, NEW YORK 10601
(914) 681-6006
OFFICE FAX (914)681-8728

To:
Attorney(s) for

Service of a copy of the within *is hereby admitted,*
Dated: .....
Attorney(s) for

PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY *that the within is a (certified) true copy of a entered in the office of the clerk of the within named Court on* *20*

☐ NOTICE OF SETTLEMENT *that an Order of which the within is a true copy will be presented for settlement to the Hon. one of the judges of the within named Court, at on* *20* *, at* *M.*

Dated:

GOLDSCHMIDT & GENOVESE, LLP
Court Appointed Attorneys for Child, [redacted]
81 MAIN STREET, SUITE 405
WHITE PLAINS, NEW YORK 10601
(914) 681-6006
OFFICE FAX (914)681-8728

To:
Attorney(s) for